

26STCV13685 26STCV13685

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-11

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Case Number: 26STCV13685 Hearing Date: September 11, 2026 Dept: 512

HEARING DATE: Fri., September 11, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bohbot aka Hamilton v. Bendenoun, et

al. COMPL. FILED: 04-28-26

CASE NUMBER: 26STCV13685

NOTICE: NO

PROCEEDINGS: MOTION

FOR LEAVE TO AMEND ANSWER; APPLICATION TO APPEAR PRO HAC VICE

MOVING PARTY: Defendants

Gilles Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun

Consulting, Bendenoun Consulting, and Bendenounco

RESP. PARTY: None (Motion); Plaintiffs Jeff Bohbot

aka Jeff Hamilton; Jeff Hamilton Shop Inc.; Jeff Hamilton Fashion Group; and

Hammy Industries, LLC (Application)

MOTION FOR LEAVE TO AMEND;

APPLICATION TO APPEAR PRO HAC VICE

(CCP § 473(a);

CRC, rule 9.40)

TENTATIVE RULING:

Defendants Gilles

Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, Bendenoun Consulting, and Bendenounco's unopposed Motion for Leave to Amend Answer is CONTINUED to Friday, October 16, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days

prior to the next scheduled hearing date, Moving Defendants are to file and serve supplemental papers addressing the deficiencies noted herein and proper notice of hearing on the Motion.

Defendants Gilles

Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, Bendenoun Consulting, and Bendenounco's Application for Thomas C. Dorwart to Appear Pro Hac Vice is CONTINUED to Friday, October 16, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days

prior to the next scheduled hearing date, Defendants are to file and serve proper proof of service and notice of hearing on the Application. Any Opposition to the Application is to be filed at least 9 court days in advance of the continued hearing date. Any Reply is to be filed at least 5 court days in advance of the continued hearing date.

Moving

parties are to give notice of ruling.

MOTION SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of September 7, 2026 ☐ Late ☒

None

REPLY: None

filed as of September 7, 2026 ☐ Late ☒

None

APPLICATION SERVICE:

☐ Proof of Service Timely

Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§

1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,

1005(b)) NO

OPPOSITION: Filed

on August 4, 2026 ☐

Late ☐ None

REPLY: Filed

on August 17, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On April 28, 2026, Plaintiffs Jeff

Bohbot aka Jeff Hamilton; Jeff Hamilton Shop Inc.; Jeff Hamilton Fashion Group;

and Hammy Industries, LLC ("Plaintiffs") and Roes 1-10 filed the instant action

against Defendants Gilles Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles

Bendenoun Consulting, Bendenoun Consulting, and Bendenounco ("Defendants") and

Does 1-50, alleging causes of action for Fraud, Breach of Fiduciary Duty,

Conversion, Civil Conspiracy, Constructive Fraud, Imposition of Constructive

Trust, and Aiding and Abetting Fraud and Breach of Fiduciary Duty.

On July 10, 2026, Defendants Gilles

Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, and

Bendenounco filed an Answer.

On August 6, 2026, Moving Defendants

Gilles Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, Bendenoun Consulting, and Bendenounco (“Moving Defenadnts”) filed the instant Motion for Leave to Amend Answer (the “Motion”).

On August 18, 2026, Applying

Defendants Gilles Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, Bendenoun Consulting, and Bendenounco (“Applying Defendants”) filed the instant Application for Thomas C. Dorwart to Appear Pro Hac Vice (the “Application”).

On August 4, 2026, Plaintiffs filed an
Opposition to the Application.

On August 17, 2026, Applying
Defendants filed a Reply.

To date, no Opposition to the Motion
has been filed.

II.

Motion
for Leave to Amend Answer

A. Procedural
Issues

As an initial matter, the Court notes the Motion provides the incorrect hearing date for the instant Motion – namely, the Motion’s caption states the hearing date for the Motion is November 6, 2026; however, the hearing date for the instant Motion is September 11, 2026.

The Court may not rule on the Motion absent proper notice of hearing.

Further, the Motion contains other deficiencies. California Rules of Court, rule 3.1112 requires that motions consist of a notice of hearing, the motion itself, and a memorandum in support (Cal. Rules of Court, rules 3.1112), and California Rules of Court, rule 3.1113 requires that a supporting memorandum contain “a

statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rules 3.1113.) Here, the Motion does not include a full notice of motion or a supporting memorandum.

Thus, the Motion is CONTINUED to allow Moving Defendants an opportunity to file supplemental papers addressing the deficiencies noted herein and proper notice of hearing on the Motion.

III.

Application to Appear Pro Hac Vice

A.

Procedural Issues

As an initial matter, the Court notes that the Opposition and Reply to the Application were filed prior to the Motion being filed and served. As such, it is unclear if the Opposition and Reply were in response to the specific Motion filed with and being ruled on by the instant Court.

Further, the Court finds that service and notice of hearing on the Application are defective. The Application was not filed and served 16 court days and 10 calendar days prior to the instant hearing pursuant to Code of Civil Procedure section 1005 given that the manner of service was mail and the place of mailing was outside the state of California. (See App., Proof of Service; Code Civ. Proc. § 1005.)

While the Court acknowledges that Plaintiffs filed an Opposition prior to the Motion being filed, the Court does not find that the State Bar of California has been afforded adequate notice and service of the Application.

Thus, the Application is CONTINUED to allow Applying Defendants to file and serve proper proof of service and notice of hearing on the Application.

Further, given the timing discrepancies with the Opposition and Reply to the

Application, any Opposition or Reply to the Application should be filed in accordance with the Code of Civil Procedure and the continued hearing date.

IV.

Conclusion
& Order

Based on the foregoing, Defendants

Gilles Bendenoun, Joanna Bendenoun, Shana Bendenoun, Gilles Bendenoun Consulting, Bendenoun Consulting, and Bendenounco's unopposed Motion for Leave to Amend Answer is CONTINUED to Friday, October 16, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

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